

Ref No.: BD-ACEPM-SAMCO-LET-020

Date: Monday, 8th of December 2025

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Design Review

Reference (S):

1) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-029 dated 08/12/2025

Dear Sir,

With reference to the above-mentioned subject and the Contractor's letter Ref. (01) regarding the design review, the Engineer wishes to clarify the following:

The Contractor's letter Ref. (01) did not include any revision, supporting documents, technical comments, or evidence that such verification has been carried out to the Contract's Documents. According to Sub-Clause 4.1 [Contractor's General Obligations], the Contractor is required to check, review, verify, and compare all documents forming the Contract and to identify any error, omission, fault, discrepancy, or defect in the design or Contract documents. Furthermore, neither the Engineer nor the Employer has instructed the Contractor to carry out any modifications to the design documents, as incorrectly stated in the Contractor's letter Ref. (01). Such a statement is inaccurate and refers to works that fall outside the Contractor's Scope of Work.

Despite the discussions and agreed outputs recorded during the meeting held on 2nd December 2025, the Contractor has neither followed the agreed actions nor demonstrated progress in line with those commitments. It was explicitly stated that, in the event of any discrepancies in the design parameters, the Contract's Consultant was to apply their parameters and provide the Engineer with a detailed design check report, including structural safety assessments and recommendations.

Moreover, the Contractor has delayed in submitting the design review report required under the Contract, noting that the submission deadline was before 11th of November 2025. Consequently, such delays may affect the Time for Completion and may result in the Contractor losing entitlement to any extension of time or additional cost, as provided under Sub-Clause 4.1, since the delay in submitting the review is attributable solely to the Contractor. Furthermore, the Contractor's statement in letter Ref. (01) that the design was delivered for his consideration on 27th of October 2025 is incorrect, as all Contract documents were officially provided to the Contractor since 4th of August 2025. This demonstrates an unreasonable delay by the Contractor in commencing and completing the required review.

In light of the above, the Contractor is instructed to expedite the issuance of the full and comprehensive design review report for all Works included in all Contract Documents, without any additional delay, as requested during the Progress Meeting held on 8th of December 2025. The report must clearly verify whether the design is safe or requires corrections, supported by technical analysis and documentation.

This letter is issued strictly without prejudice to the Employer's rights and entitlements under the Contract. Nothing contained herein shall be construed as a waiver of any rights, remedies, or claims available to the Employer, all of which are expressly reserved.

Yours faithfully,



Eng. / Abdelaziz Mohamed
ACE-PM
MOHARRAM BAKHOUM
Project Manager
ACE Project Management

Attachment(s): N/A

CC:

Eng. Mostafa Gala – Owner representative